

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

Maggie Castellon, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2310

**To contest the tentative ruling, call (408) 808-6856 before 4:00 P.M. or email
department19@scscourt.org.**

Please state your case name, case number, the name of the attorney and contact number/email. It would also be helpful if you would identify the specific portion or portions of the tentative ruling that you wish to address. Please make sure you have timely notified the Court and all parties that you are contesting the tentative ruling. The tentative ruling will become the ruling of the Court if timely notice has not been given. (See R. Ct. 3.1308(a)(1); Local Rule 8.E.)

Court Reporters are not provided by the Court. Please consult the Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through Unicorn Digital Platform (UDC), unless otherwise arranged with the Court. Please go to https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.
- If any party requests a Court Reporter, the appropriate form must be submitted. The reporter may appear in person or remotely.
- Members of the public who wish to observe can do so through Unicorn Digital Platform (using the link discussed above) or in person. Please make sure to turn your camera off and mute yourself if you are observing the proceedings remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely on any platform.

LAW AND MOTION TENTATIVE RULINGS

**DATE: August 12, 2026 TIME: 1:30 P.M.
PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
<u>LINE 1</u>	24CV431363	Togonidze v. KLA Corporation (Class Action / PAGA)	See <u>Line 1</u> for tentative ruling.
<u>LINE 2</u>	24CV435308	Charles v. Advanced Chemical Transport, et al. (Class Action) [Coordination Proceedings PENDING]	See <u>Line 2</u> for tentative ruling.
<u>LINE 3</u>	24CV436820	Martinez v. Intapp, Inc. (Class Action/PAGA)	See <u>Line 3</u> for tentative ruling.
<u>LINE 4</u>	25CV463465	Katherine Wilson v. Google LLC	See <u>Line 4</u> for tentative ruling.
<u>LINE 5</u>	25CV481772	Marcos Ramos et al. v. Branch Metrics, Inc. (Class Action)	See <u>Line 5</u> for tentative ruling.
<u>LINE 6</u>	25CV481772	Marcos Ramos et al. v. Branch Metrics, Inc. (Class Action)	See <u>Line 5</u> for tentative ruling.
<u>LINE 7</u>	26CV487768	Pure Lithium Corporation v, Panasonic Corporation of North America	See <u>Line 7</u> for tentative ruling.
<u>LINE 8</u>	26CV487768	Pure Lithium Corporation v, Panasonic Corporation of North America	See <u>Line 7</u> for tentative ruling.
<u>LINE 9</u>	26CV487768	Pure Lithium Corporation v, Panasonic Corporation of North America	See <u>Line 7</u> for tentative ruling.
<u>LINE 10</u>	26CV487768	Pure Lithium Corporation v, Panasonic Corporation of North America	See <u>Line 7</u> for tentative ruling.
<u>LINE 11</u>	26CV487768	Pure Lithium Corporation v, Panasonic Corporation of North America	See <u>Line 7</u> for tentative ruling.
<u>LINE 12</u>	26CV487768	Pure Lithium Corporation v, Panasonic Corporation of North America	See <u>Line 7</u> for tentative ruling.
<u>LINE 13</u>			

Calendar Line 1

Case Name: *Togonidze v. KLA Corporation*
Case No.: 24CV431363

This is a putative class and representative action arising from alleged wage and hour violations. In the operative Third Amended Class and Representative Action Complaint (“Operative Complaint”) against defendant KLA Corporation (“Defendant”), plaintiff Everardo Sumano (“Plaintiff”) alleges failures to pay minimum and overtime wages, provide compliant meal and rest periods, timely pay final wages, provide accurate itemized wage statements, reimburse necessary business expenses, and pay sick pay, as well as related penalties under the Private Attorneys General Act (“PAGA”).

Plaintiff moves for preliminary approval of the settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for preliminary approval and sets a final approval hearing for March 10, 2027 at 1:30 p.m. in Department 5.

I. Legal Standard

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Similar to its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks*

Corp. (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Discussion

A. Provisions of the Settlement

This case has been settled on behalf of the following class:

All non-exempt employees of Defendant in the State of California at any time between February 20, 2020 and June 13, 2025 [the “Class Period”].

(Declaration of Mehrdad Bokhour (“Bokhour Decl.”), Ex. A (“Agreement”), § 1.3.) The settlement includes a subset PAGA group of Aggrieved Employees, defined as “all Class Members employed by Defendant at any time between February 11, 2023 and June 13, 2025 [the “PAGA Period”].” (Id. at §§ 1.2, 1.22.)

Defendant will pay a non-reversionary gross settlement amount of \$4,100,000. The gross settlement amount includes attorney fees of up to 35 percent of the gross settlement amount (\$1,435,000); litigation costs of up to \$30,000; a PAGA allocation of \$205,000 (75 percent of which (\$153,750) will be paid to the LWDA and 25 percent of which (\$51,250) will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$10,000; and settlement administration costs of up to \$12,000. (Motion, pp. 1:13–25, 6:25–7:10.) After these deductions, an estimated net settlement amount of approximately \$2,408,000 will be distributed to the approximately 1,138 Settlement Class Members on a pro rata basis according to workweeks worked, with no claim form required. (Motion, p. 7:6–10.)

The Agreement provides that CPT Group, Inc. (“CPT”) will serve as the neutral entity that will administer the settlement. (Motion, p. 27:1–7.) The Court appoints CPT as the settlement administrator.

The Agreement further provides that funds from settlement checks that remain uncashed 180 days after mailing will be donated to the *cy pres* recipient, Legal Aid at Work, subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (Agreement, § 10.5.) Code of Civil Procedure section 384 mandates that unclaimed or abandoned class members’ funds be given to “nonprofit organizations or foundations to support

projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent.” The Agreement’s designation of Legal Aid at Work as the *cy pres* recipient, subject to section 384, complies with the statute.

In exchange for the settlement, the Participating Class Members agree to release Defendant and related parties from all claims that were or could have been alleged based on the facts stated in the Operative Complaint arising during the Class Period, including claims for unpaid minimum, straight-time, and overtime wages; meal and rest period violations; wage statement and waiting time penalties; unreimbursed business expenses; sick pay; and unfair competition, together with a release under Civil Code section 1542. (Agreement, § 12.1.) Aggrieved Employees will release all PAGA claims for penalties arising during the PAGA Period that were or could have been alleged based on the facts alleged in any version of the complaint and the LWDA letters. (*Id.* at § 12.2.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiff contends that the Agreement meets the standards for preliminary approval. (Motion, pp. 14:17–23:6.) Plaintiff’s counsel states that the parties participated in a full-day mediation with experienced wage-and-hour mediator Daniel Turner, Esq., on February 13, 2025, and, although the matter did not resolve at mediation, accepted the mediator’s proposal on March 13, 2025, resulting in a settlement in principle. (Bokhour Decl., ¶ 17.) Prior to mediation, Defendant produced a sample of class-member time and pay records, its wage and hour policies, and workforce data, which Plaintiff’s counsel analyzed with the assistance of an expert. (*Id.* at ¶¶ 16, 33.)

According to the analysis by Plaintiff’s counsel, the maximum exposure across the wage, penalty, and PAGA claims is approximately \$27.8 million, and the estimated realistic, risk-adjusted value of the case (after applying discounts for the risks of non-certification and

defeat on the merits) is approximately \$7,822,916. (Bokhour Decl., ¶¶ 37–53; Motion, pp. 17:24–22:26.) The gross settlement amount of \$4,100,000 represents approximately 14.7 percent of the estimated maximum exposure and approximately 52 percent of the estimated risk-adjusted exposure, which is within the general range of percentage recoveries that California courts have found to be reasonable.

The Court has reviewed Plaintiff’s written submissions and is satisfied that the settlement is fair and may be approved.

C. Service Award, Fees and Costs

Plaintiff seeks a service award of up to \$10,000 and has provided a declaration describing his participation in this action. The Court is inclined to approve the service award in the amount requested and will issue its determination at the final approval hearing. Class counsel will seek attorney fees of up to 35 percent of the gross settlement amount. The Court notes that this request exceeds the one-third benchmark that California courts commonly approve in wage-and-hour class actions, and the Court will scrutinize the requested percentage—with the assistance of a lodestar cross-check—at the final approval hearing. Prior to the final approval hearing, class counsel shall submit lodestar information (including hourly rates and hours worked) sufficient to support the requested fee, as well as evidence of actual litigation costs incurred and settlement administration costs.

D. Conditional Certification of Class

Plaintiff requests that the class be conditionally certified for purposes of the settlement. California Code of Civil Procedure section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court ...”

Plaintiff states that there are approximately 1,138 class members who can be identified from a review of Defendant’s records. The Court finds that there are common questions regarding whether class members were subjected to unlawful wage and hour policies and practices, and that the proposed class may be conditionally certified for settlement purposes. The Court appoints Everardo Sumano as class representative and appoints Mehrdad Bokhour

of Bokhour Law Group, P.C., Joshua Falakassa of Falakassa Law, P.C., Maggie K. Realin of Cohelan Khoury & Singer, and David R. Markham and Lisa R. Brevard of The Markham Law Firm as class counsel, in each case for purposes of settlement only.

E. Class Notice

California Rules of Court, rule 3.769, subdivision (f), provides, “If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.”

Here, the form of the notice is generally adequate subject to the modification set forth below. It describes the lawsuit, explains the settlement, and states the settlement amounts, including attorney fees and the payment to the named plaintiff, and it informs class members of their estimated settlement share and of the procedures for opting out of or objecting to the settlement.

The following language regarding the final approval hearing shall be added to the notice:

Class members may appear at the final approval hearing in person or remotely using the link for Department 5, and should review the remote appearance instructions beforehand:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

On the condition that the parties make the above modification to the notice prior to its mailing, the notice is approved.

III. Conclusion

The Court GRANTS the motion for preliminary approval and sets a final approval hearing for March 10, 2027 at 1:30 p.m. in Department 5.

Plaintiff shall prepare the order.

- oo0oo -

Calendar Line 2

Case Name: *Charles v. Advanced Chemical Transport et al.*
(*Advanced Chemical Transport Wage and Hour Cases*)
Case No.: 24CV435308 (JCCP NO. 5345)

This is a coordinated putative class and representative action arising from alleged wage and hour violations. In the operative Consolidated Amended Class and Representative Action Complaint (“Operative Complaint”) against defendants Advanced Chemical Transport, LLC (“ACT”) and IQ Personnel, Inc. (“IQ”) (collectively, “Defendants”), plaintiffs Wayne Herbert Charles and Latrell Williams (“Plaintiffs”) allege failures to pay minimum and overtime wages, provide compliant meal and rest periods, timely pay wages, provide accurate wage statements, maintain payroll records, reimburse business expenses, and provide paid sick leave, as well as related penalties under the Private Attorneys General Act (“PAGA”).

Plaintiffs move for preliminary approval of the settlement, and the motion is unopposed. As discussed below, the record does not permit the independent assessment of reasonableness that California law requires, and several provisions of the settlement agreement and proposed class notice require correction. The Court CONTINUES the motion to November 5, 2026 at 1:30 p.m. in Department 5 and orders the supplemental submission described in Section III.

I. Legal Standard

Whether a settlement is fair and reasonable, whether notice is adequate, whether certification is proper, and whether an attorney fee award is proper “are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) The record must permit “an understanding of the amount that is in controversy and the realistic range of outcomes,” and counsel’s assurance that

the settlement is fair is no substitute for that showing. (*Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 799–801 (*Clark*); *Kullar, supra*, at pp. 120, 129–130.)

Similar to its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under the Private Attorneys General Action (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Discussion

A. Provisions of the Settlement

The settlement class consists of all non-exempt ACT direct hires and all non-exempt IQ employees placed at ACT, in California, from April 15, 2020 through the date of preliminary approval; a subset of Aggrieved Employees is defined by a PAGA Period running from April 15, 2023 through the same date. (Declaration of Evan S. Gaines (“Gaines Decl.”), Ex. B (“Agreement”), §§ 1.4, 1.5, 1.12, 1.31.) Defendants estimate 736 Class Members with 75,000 workweeks and 553 Aggrieved Employees with 23,000 PAGA pay periods. (*Id.* at § 4.1.)

Defendants will pay a non-reversionary gross settlement amount of \$2,029,500, including attorney fees of up to one-third (\$676,500), litigation costs of up to \$40,000, a PAGA allocation of \$160,000 (\$120,000 to the LWDA, \$40,000 to Aggrieved Employees), and administration costs of up to \$10,500. (Agreement, §§ 3.1–3.2.5.) No service payment is sought. The resulting net settlement of approximately \$1,142,500 will be distributed pro rata by workweeks with no claim form, roughly \$1,552 per Class Member. Individual PAGA payments average roughly \$72. The Agreement provides that Apex Class Action Administration will administer the settlement at a capped \$10,500 against a quoted \$12,390,

and its declaration adequately addresses competency, data security, insurance, and the absence of any relationship with the parties or counsel. (Agreement, ¶ 1.2; Declaration of Kimberly Sutherland, ¶¶ 2–7 and Ex. B.)

The Agreement further provides that funds from uncashed settlement checks will be tendered to the California State Controller Unclaimed Property Fund in the name of the Class Member. (Agreement, § 4.4.3.) Code of Civil Procedure section 384 mandates that unclaimed or abandoned class members’ funds be given to “nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent.” In this Court’s view, the Agreement’s Unclaimed Funds provision at paragraph 4.4.3 does not comply with Code of Civil Procedure section 384. Therefore, the parties shall meet and confer to designate a *cy pres* beneficiary by written agreement and amend the Class Notice accordingly.

The statutes enumerated in the releases correspond in substance to the violations pleaded, including the sick pay and section 2810.5 allegations, and to that extent appear tailored to the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.) Nevertheless, three drafting problems require correction. Sections 5.2, 5.3 and 8 are keyed to a “Class Release Period” and a “PAGA Release Period,” neither defined anywhere in the Agreement; the defined terms are “Class Period” and “PAGA Period.” Section 5.3 then releases claims accruing “during the Class Release Period ... that accrued or occurred during the PAGA Release Period,” two clauses that cannot both be operative. And both releases reach claims that “reasonably could have been alleged based on facts ascertained during the Action”; facts ascertained in discovery are not facts pleaded, and that phrase shall be deleted. (*Amaro, supra*, at p. 538.) The PAGA release also extends more than two years past the April 2024 LWDA notices, without explanation.

B. Fairness of the Settlement

Class Counsel obtained policies, pay stubs, and payroll and time data before mediating with Brandon McKelvey, Esq., on August 20, 2025. (Gaines Decl., ¶¶ 15–17; Lindsay Decl., ¶¶

5–6.) The Gaines declaration values the claims at \$1,212,051 (off-the-clock, on-call and rounding), \$110,073 (overtime), \$387,307 (regular rate), \$10,469,239 (rest periods), a figure printed as “\$5,706,45” (meal periods, net of premiums paid), and figures printed as “\$1,910,59” for both wage statement and waiting time penalties, plus PAGA penalties totaling \$8,702,000. (Gaines Decl., ¶¶ 21-27.) Reading the truncated figures as \$5,706,450 and \$1,910,590, class claims total roughly \$21.7 million and total exposure roughly \$30.4 million. The gross settlement is about 6.7 percent of that figure; the net settlement about 5.3 percent of the class claims; and the PAGA allocation about 1.8 percent of the claimed penalties.

The moving papers provide no aggregate exposure figure, no percentage, and no risk-adjusted valuation appear anywhere; counsel state only that the analysis “reveals that the negotiated settlement falls within a realistic range of recovery.” (Gaines Decl., ¶ 17.) That is the conclusion, not the reasoning. The largest component is the \$10,469,239 rest period claim (nearly half the class exposure) and rests on a “presumed 100% violation rate, estimated based on Plaintiffs’ experience,” though the same records yielded a measured 49.6 percent rate for meal periods. (*Id.* at ¶¶ 22-23.) Nothing explains how the \$160,000 PAGA figure was derived or why it vindicates the state’s interest. (*Moniz, supra*, 72 Cal.App.5th at pp. 76–77.) The assertion that Defendants have “a limited ability to pay any judgment due to financial constraints” is unsupported. (Gaines Decl., ¶ 28.)

While none of the above observations necessarily mean settlement is unreasonable. A recovery of five to seven percent of a maximum built on a presumed 100 percent violation rate may be entirely defensible once that maximum is discounted to a realistic figure. But the Court cannot make that judgment on a record that supplies the numerator and leaves it to guess at the denominator. Further, the Court cannot fairly assess the adequacy of the settlement without the opportunity to review the separate individual settlements with the Plaintiffs.

C. The Separate Individual Settlements with Plaintiffs

No service payment is sought. Instead, Defendants agreed to pay each Plaintiff \$20,000 (\$40,000 total) “in exchange for a general release of all claims (with Civil Code section 1542

waivers),” under separate agreements negotiated at the same mediation that produced the class settlement. (Agreement, §§ 1.14, 3.2.1, 5.1; Gaines Decl., ¶ 16.)

Such an arrangement “creates a possible conflict of interest between the class representative and the absent class members,” and where the representative receives consideration outside the common fund the court must satisfy itself that his own recovery did not influence the bargain struck for the class. (*Clark, supra*, 175 Cal.App.4th at pp. 804–807; see *Radcliffe v. Experian Information Solutions, Inc.* (9th Cir. 2013) 715 F.3d 1157, 1164–1165.) Plaintiffs are entitled to settle individual termination claims. The concern is that \$40,000 (or roughly two percent of the entire gross settlement) was negotiated simultaneously with, and by the same counsel as, the class settlement, and structured so that it is paid outside the fund rather than scrutinized as a service award within it.

The record does not permit the Court to resolve that concern. Neither Plaintiff’s declaration discloses the amount (Charles Decl., ¶ 9; Williams Decl., ¶ 12), a Class Member reading the proposed notice would learn nothing of these payments at all, and the Court cannot evaluate whether \$20,000 each is commensurate with the individual claims released. Section 1.14 compounds the confusion by stating that Plaintiffs “will remain entitled to receive their individual settlement payments from the Net Settlement Amount” — apparently meaning their pro rata Individual Class Payments but using the same phrase as the side payments.

D. Fees, Costs, and Administration Expenses

The one-third fee request is consistent with the benchmark California courts commonly apply in wage-and-hour class actions, and the Court is not inclined to disturb it at this stage. The Court will scrutinize the percentage with a lodestar cross-check at final approval, and Class Counsel shall submit lodestar information (rates, timekeepers, hours) and itemized costs beforehand. Because this matter resolved through informal discovery and a single mediation without a contested certification motion, counsel should be prepared to address the resulting multiplier. Preliminary approval of these amounts is without prejudice to the determination at final approval.

E. Conditional Certification of Class

Plaintiffs request the class be conditionally certified for purposes of the settlement. California Code of Civil Procedure section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court ...”

Plaintiffs state that there are approximately 736 class members who can be identified from a review of Defendant’s records. The Court finds that there are common questions regarding whether class members were subjected to unlawful conduct and that proposed class may be conditionally certified for settlement purposes.

F. Class Notice

California Rules of Court, rule 3.769, subdivision (f), requires that notice of the final approval hearing contain “an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing.”

The proposed notice is well organized, written in plain language, and will be mailed in English and Spanish. Nevertheless, the notice cannot be approved in its present form because it misstates the settlement in several respects:

1. Section 4.2 calculates Individual PAGA Payments by “dividing \$50,737.50” by the PAGA pay periods; the Agreement allocates \$40,000 (Agreement, § 3.2.5). The figure appears to be a holdover from another settlement.
2. Section 3.1 lists a “Class Representative Service Payment” among the deductions, and Section 7 and the summary table refer to a “Service Award” request. No such payment exists. These references shall be replaced with an accurate description of the separate individual settlements.
3. Section 3.2.A describes the \$676,500 as covering “attorneys’ fees and actual and reasonable litigation expenses,” though up to \$40,000 in expenses is sought in addition. The notice thus understates total deductions and shall state the two requests separately.

In addition, the following language regarding the final approval hearing shall be added to the notice:

Class members may appear at the final approval hearing in person or remotely using the link for Department 5, and should review the remote appearance instructions beforehand:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

A revised proposed notice shall be lodged with the Court.

III. Conclusion

The Court CONTINUES the motion to November 5, 2026 at 1:30 p.m. in Department 5 and CONTINUES the Case Management Conference set for 2:30 p.m. on August 10, 2026 to the same November 5, 2026 at 2:30 p.m. No later than 16 court days before the continued hearing, Plaintiffs shall file a supplemental brief, supported by declarations, addressing each of the following:

1. A complete valuation: aggregate maximum exposure, corrected figures, a supported rest period estimate, an accounting for the expense and sick pay claims, and a risk-adjusted valuation identifying the discounts applied and the reasons for them, with the percentage of each that the settlement represents;
2. An independent justification for the \$160,000 PAGA allocation;
3. Evidence of Defendants' asserted limited ability to pay, or withdrawal of the assertion;
4. As to the individual settlements: lodging of both agreements for in camera review; declarations from each Plaintiff disclosing the amount, describing the claims released, and confirming no portion is consideration for supporting the class settlement; and a declaration from Class Counsel on the timing of those negotiations;
5. A justification for the differing workweek credit given direct hires and IQ-placed workers, or a revised allocation formula, along with confirmation that Plaintiffs adequately represent both subgroups;

6. An amended agreement or stipulated addendum defining the release periods, correcting section 5.3, deleting the “facts ascertained during the Action” language, clarifying section 1.14, and addressing the scope of the PAGA release; and

7. A revised class notice, redlined and clean, correcting the deficiencies in Section II.F and disclosing the individual settlements.

Plaintiffs shall also lodge a revised proposed order and a fully executed agreement. Nothing here should be read as a conclusion that the settlement is unfair; the difficulty is with the sufficiency of the record and with provisions that do not accurately describe what the parties have agreed to.

Plaintiff shall prepare the order.

- oo0oo -

Calendar Line 3

Case Name: *Martinez v. Intapp, Inc.*
Case No.: 24CV436820

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court granted Plaintiff's motion for preliminary approval of the settlement on April 10, 2026. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for April 14, 2027 at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

All individuals employed by Defendant Intapp, Inc. in the State of California from April 26, 2020 to July 31, 2025.

(Declaration of Jose Macias, Jr. in Support of Motion for Preliminary Approval, Ex. 1 (“Agreement”).) Although the Court’s order granting preliminary approval defined the class period as running through February 4, 2026, Defendant elected to shorten the class period to July 31, 2025 pursuant to the terms of the parties’ Agreement. The settlement includes a subset group of PAGA Aggrieved Employees, defined as all individuals employed by Defendant as employees in California at any time during the PAGA Period [April 26, 2023 through July 31, 2025].

Defendant will pay a gross settlement amount of \$275,000, and this amount includes: attorney fees of up to one-third of the gross settlement amount (\$91,666.67); litigation costs not to exceed \$15,000 (of which \$12,758.19 is sought); a PAGA penalties allocation of \$27,500 (75 percent of which, or \$20,625, will be paid to the LWDA, and 25 percent of which, or \$6,875, will be paid to Aggrieved Employees as part of the net settlement amount); a service payment of up to \$5,000 to Plaintiff; and settlement administration costs up to \$8,250. (Motion, pp. 2–4.) The settlement is non-reversionary, and no class member is required to submit a claim form. The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of months they were employed by Defendant during the Class Period, and individual PAGA payments will be distributed according to the number of months worked during the PAGA Period. The Agreement provides that Phoenix Settlement Administrators (“Phoenix”) will serve as settlement administrator. The Agreement provides that any funds from uncashed settlement checks will be transmitted to Bay Area Legal Aid. The Court approves the *cy pres* designation.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from all claims, rights, demands, liabilities, and causes of action reasonably arising from, or reasonably related to, the same set of operative facts as those set

forth in the operative Complaint in the Action during the Class Period. Aggrieved Employees will be deemed to release Defendant and related entities and persons from any and all claims under the Private Attorneys General Act, California Labor Code sections 2698, et seq., that were alleged or could reasonably have been alleged based on the same facts alleged in the operative Complaint and the PAGA notice, arising during the PAGA Period. The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting Plaintiff's motion for preliminary approval, the Court approved Phoenix as settlement administrator. On April 23, 2026, Defendant provided the class data to Phoenix, and the Class List contained 309 Class Members. (Declaration of Mayra Gonzalez on Behalf of Phoenix Settlement Administrators ("Gonzalez Decl."), ¶ 3.) On May 8, 2026, Phoenix mailed the Class Notice to all 309 individuals on the Class List by first-class mail. (*Id.* at ¶ 5.) Sixteen notices were returned as undeliverable; Phoenix performed skip traces and re-mailed fourteen of them, leaving two notices ultimately undeliverable. (*Id.* at ¶¶ 6–7.) The deadline to request exclusion, submit a written objection, or dispute the number of months worked was June 22, 2026. (*Id.* at ¶¶ 8–10.) As of the date of Ms. Gonzalez's declaration, Phoenix had received one request for exclusion, zero objections, and zero month disputes. (*Ibid.*) There are 308 Settlement Class Members, representing 99.68 percent of the Class. (*Id.* at ¶ 11.) Phoenix estimates the average individual settlement payment will be approximately \$421.51, and the average individual PAGA payment will be approximately \$29.76. (*Id.* at ¶¶ 14–15.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, it finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of \$5,000. Plaintiff has provided a declaration detailing his participation in this litigation and the risks he undertook by being the named plaintiff. The Court finds that a service award is justified and the amount requested is reasonable. The service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of \$91,666.67, which is one-third of the gross settlement amount and equal to the one-third maximum set by the Agreement. (Motion, pp. 12–14; Declaration of Jose Macias, Jr. in Support of Motion for Final Approval (“Macias Decl.”), ¶¶ 10–17.) Plaintiff's counsel represents that the lodestar for this action is \$109,727.80, based on 124.7 hours billed at hourly rates ranging from \$508 to \$1,019. Because the lodestar exceeds the requested fee, the requested award reflects a negative multiplier, which confirms its reasonableness under a lodestar cross-check. The benefits achieved by the settlement justify an award of attorney fees to Class Counsel. The Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of \$12,758.19, which is within the \$15,000 cap set by the Agreement, and they provide an itemized list in support. (Motion, p. 14; Macias Decl., ¶¶ 19–20 and Ex. 2.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$8,250. (Gonzalez Decl., ¶ 17 and Ex. B.)

IV. Conclusion

The Court GRANTS the motion and sets a compliance hearing for April 14, 2027 at 2:30 p.m. in Department 5.

Plaintiff shall prepare the order.

- oo0oo -

Calendar Line 4

Case Name: *Wilson v. Google LLC*
Case No.: 25CV463465

Disclosure

A judge has a duty to decide any proceeding in which they are not disqualified.

I am required to disclose that included in the diverse portfolio of multiple investment interests held in my family trust are stock shares in the parent company of defendant Google, Alphabet Inc. This trust is entirely managed by an independent financial advisor who makes decisions regarding investment purchases, sales and overall holdings. Though the trust is not a blind trust, I rely entirely upon the expertise of the advisor, and I am not involved in making these investment decision.

I have carefully considered the scope and extent of this interest in the context of being assigned this case, and I have relied upon the discussion and advice provided by the Judicial Ethics Committee of the California Judges Association, particularly Formal Ethics Opinion No. 59. Opinion 59 addresses precisely the issue presented here. I will provide counsel with a copy.

I have concluded I am not disqualified from this case, and I can assure counsel and the parties that I am confident in my ability to be fair and impartial. Although I conclude I am not disqualified, I am required by my ethical responsibilities to make this disclosure.

///

Tentative Ruling on Demurrer:

Defendant Google LLC (“Google”) demurs to each of the three causes of action in the First Amended Complaint (“FAC”) of plaintiff Katherine Wilson (“Plaintiff”), which allege violations of the California Invasion of Privacy Act (“CIPA”), Penal Code sections 631, 632, and 635. Google has also filed a Request for Judicial Notice (“RJN”). Having considered the papers submitted and the applicable authorities, the Court rules as follows.

The demurrer to the first cause of action (section 631) and the second cause of action (section 632) is OVERRULED. The demurrer to the third cause of action (section 635) is SUSTAINED WITH LEAVE TO AMEND. Google’s Request for Judicial Notice is GRANTED IN PART and DENIED IN PART as set forth below.

I. Background

Plaintiff alleges that the California Department of Motor Vehicles (“DMV”) embedded Google Analytics and DoubleClick software tags (“the Tags”) throughout its website, including on the pages Californians use to apply for, renew, replace, and check the status of a Disabled Person Parking Placard (“DPP”). (FAC, ¶¶ 2–3, 57–64.) According to the FAC, when a user visited a DMV page, the Tags executed in the user’s browser and caused it to transmit the page’s descriptive URL (which reveals the user’s disability-related activity) together with Google-created identifiers, to Google in real time and before the user’s communication reached the DMV’s servers. (*Id.* at ¶¶ 41–47, 64–78, 84–92.) Plaintiff alleges Google parses and interprets that content contemporaneously and uses it for advertising and analytics. (*Id.* at ¶¶ 26–29, 45–56, 92–94.)

Plaintiff renewed her permanent DPP through the DMV portal in approximately June 2023 and alleges she did not consent to, and was unaware of, the transmission of her communications to Google. (FAC, ¶¶ 13–16, 99.) The FAC further alleges that DMV and disability information is designated confidential or highly restricted under several statutes. (*Id.* at ¶¶ 8, 104.) The action was originally filed in the United States District Court for the Northern District of California and refiled in this Court following dismissal of the sole federal claim.

II. Request for Judicial Notice

Google requests judicial notice of (A) the operative complaint in *Doe I v. Google LLC*, No. 3:23-cv-02431-VC (N.D. Cal.), offered as an “illustrative and comparative” pleading benchmark; and (B)–(C) Google’s own Google Analytics Terms of Service and a Google Analytics Help Center webpage, offered to establish that Google did not intend to receive the challenged information because it directed website operators not to transmit personally identifiable data and to obtain consent. (Google Request for Judicial Notice (“RJN”), pp. 2–5.)

The Court may take judicial notice of the existence of a court record and of the existence and content of a publicly available webpage, but not of the truth of the matters

asserted within such documents or of their proper interpretation. (Evid. Code, section 452, subds. (d), (h); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 456, fn. 9; *Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 113–115 (*Fremont*); *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194.) A hearing on demurrer “may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (*Fremont, supra*, 148 Cal.App.4th at p. 114.)

As to Exhibit A, the request is GRANTED only as to the fact that the pleading was filed; the Court does not take notice of the truth of its allegations and does not treat it as a benchmark against which the sufficiency of the FAC is measured. (See RJN, pp. 3–4; Plaintiff’s Opposition to the Request for Judicial Notice (“RJN Opp.”), pp. 2–3.) The adequacy of the FAC is governed by California pleading standards and the allegations of the FAC itself.

As to Exhibits B and C, the request is GRANTED only to the extent that the identified webpages existed in the form submitted and is otherwise DENIED. Google offers these materials to prove that it did not intend to receive the challenged data (RJN, pp. 4–5); this is a use that would require the Court to accept the documents for their truth and to draw a merits inference of Google’s state of mind that is squarely contradicted by the allegations of the FAC. (See FAC, ¶¶ 4, 6–7, 37–66, 92–93, 114; RJN Opp., pp. 3–6.) Whether Google’s stated policies reflected its actual intent and practices, and whether they were honored, are disputed questions of fact not suited to resolution on demurrer. (*Fremont, supra*, 148 Cal.App.4th at pp. 113–115.)

III. Legal Standard

A demurrer tests the legal sufficiency of the pleading. The Court accepts as true all material facts properly pleaded and those subject to reasonable inference and liberally construes the complaint with a view to substantial justice. (Code Civ. Proc., § 452.) The Court does not, however, assume the truth of contentions, deductions, or conclusions of law. (*Rakestraw v. California Physicians’ Service* (2000) 81 Cal.App.4th 39, 43; *Ankeny v. Lockheed Missiles & Space Co.* (1979) 88 Cal.App.3d 531, 537.) A demurrer “is not the appropriate procedure for determining the truth of disputed facts,” and issues turning on a

defendant's state of mind are ordinarily not resolved at the pleading stage. (*Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879.)

IV. Discussion

A. First Cause of Action – Penal Code Section 631(a)

Section 631(a) imposes liability on one who, willfully and without consent, reads or attempts to read or learn the contents or meaning of a communication while it is in transit (the “second clause”), and on one who uses information so obtained (the “third clause”). Google contends Plaintiff fails to allege (1) reading while in transit and (2) willfulness, and that the third-clause claim fails derivatively. (Google’s Memorandum of Points and Authorities in Support of Demurrer, filed Feb. 5, 2026 (“Dem.”), pp. 9–15; Plaintiff’s Opposition to the Demurrer, filed June 2, 2026 (“Opp.”), pp. 4–10; Google’s Reply in Support of Demurrer, filed June 26, 2026 (“Reply”), pp. 1–5.)

1. Reading in Transit

The Court acknowledges the developing body of authority holding that CIPA’s second clause requires more than interception or collection because it requires an effort to understand the substantive meaning of the communication while it is in transit. (Dem., pp. 9–13; Reply, pp. 1–3; see, e.g., *Doe v. Eating Recovery Center, LLC* (N.D. Cal. 2025) 806 F.Supp.3d 1109.) Nevertheless, the FAC does not merely parrot the statute. It alleges a specific mechanism: the Tags execute within the user’s browser as the page loads and transmit the descriptive URL and associated identifiers to Google contemporaneously with, and before completion of, the user’s communication with the DMV, and Google parses and interprets that content in real time. (FAC, ¶¶ 41–47, 63–69, 76–78, 84–92; Opp., pp. 4–7.) These allegations are supported by annotated depictions of the network requests at issue. Whether the Tags’ real-time processing constitutes “reading to understand” the communication, as Plaintiff alleges, or merely sorts and categorizes data, as Google contends, presents a disputed question concerning the operation of the technology that cannot be resolved on demurrer. Accepting the FAC’s allegations as true

and drawing reasonable inferences in Plaintiff’s favor, Plaintiff has adequately alleged reading while in transit.

2. Willfulness

Plaintiff alleges that Google designed the Tags to operate undetected and to circumvent browser privacy protections, instructed operators to install the Tags on every page, and knew the Tags were assigned to and operating on the DMV website. (FAC, ¶¶ 6–7, 37–38, 64–66, 93; Opp., pp. 7–9.) These allegations support a reasonable inference of willful conduct at the pleading stage. Google’s contrary argument (Dem., pp. 13–15; Reply, pp. 3–5) rests principally on its Terms of Service and Help Center page, which (as addressed in Part II) the Court does not accept for their truth or to negate the FAC’s allegations of intent. Willfulness is adequately alleged.

Because Plaintiff states a claim under the second clause, the derivative third-clause (use) claim also survives. (Dem., p. 15; Opp., pp. 9–10.) The demurrer to the first cause of action is OVERRULED.

B. Second Cause of Action – Penal Code Section 632

Section 632 prohibits the intentional recording of a confidential communication, without consent, by means of an electronic amplifying or recording device. Google contends the Tags are not a “device,” that Plaintiff fails to allege intent, and that the communications were not confidential. (Dem., pp. 16–19; Opp., pp. 10–14; Reply, pp. 5–8.)

1. Device

California appellate authority instructs that CIPA is to be construed in light of the Legislature’s recognition that advances in technology produce new means of eavesdropping and has applied section 632 to modern surveillance technology. (Opp., pp. 10–12; *Lyon v. Superior Court* (2021) 61 Cal.App.5th 237, 245–248; *Kight v. CashCall, Inc.* (2011) 200 Cal.App.4th 1377, 1388–1389.) Google’s authorities for a categorical rule that software is never a “device” (Dem., pp. 17–18; Reply, pp. 5–7) either construe a different CIPA provision

or are not binding on this Court. At the pleading stage, and consistent with the statute's remedial purpose, the Court concludes the FAC adequately alleges that the Tags are a "device" within the meaning of section 632. Google's argument that section 638.50 separately refers to a "process" does not establish that software cannot also be a "device."

2. Intent

For the reasons stated in Part IV.A, and because intent is a fact question not resolved by judicial notice of Google's own policies, Plaintiff adequately alleges the requisite intent.

3. Confidentiality

Confidentiality under section 632 turns on whether a party had an objectively reasonable expectation that the communication was not being overheard or recorded by a nonparty. (*People v. Superior Court (Smith)* (1969) 70 Cal.2d 123, 130–131, fn. 7.) The communication at issue is not the public display of a placard (see Dem., p. 19; Reply, pp. 7–8), but Plaintiff's online submission of disability-related information to a government agency through a portal designed for legally protected data. Plaintiff alleges she expected that information to remain confined to the DMV. (FAC, ¶¶ 8, 16, 99, 104–105; Opp., pp. 12–14.) Whether that expectation was objectively reasonable is a fact-intensive question that, on these allegations, cannot be resolved against Plaintiff on demurrer.

The demurrer to the second cause of action is OVERRULED.

C. Third Cause of Action – Penal Code Section 635

Section 635 prohibits the manufacture, assembly, sale, advertisement, possession, transportation, importation, or furnishing of "any device which is primarily or exclusively designed or intended for eavesdropping upon the communication of another." The Court need not resolve the disputed question whether section 637.2 confers statutory standing on a plaintiff injured by the use of such a device (Dem., pp. 19–20; Opp., pp. 14–15; Reply, pp. 8–10), because the claim fails on an independent ground.

Section 635 reaches only a device that is “primarily or exclusively” designed or intended for eavesdropping. Here, the FAC’s own allegations describe the Tags as advertising and analytics tools and are premised on Google’s use of the collected data to operate its advertising business. (See, e.g., FAC, ¶¶ 25, 54–55.) Those allegations are incompatible with the conclusory assertion that the Tags are “primarily or exclusively” designed for eavesdropping (*id.* at ¶¶ 158–159), and the Court is not required to accept a conclusion of law that the pleaded facts contradict. Because CIPA carries both criminal and civil consequences, the Court construes the “primarily or exclusively” requirement strictly. (Dem., pp. 20–21; Opp., p. 15; Reply, p. 10.) As presently pleaded, the third cause of action does not state a claim.

Accordingly, the demurrer to the third cause of action is SUSTAINED. Because there is a reasonable possibility that Plaintiff may cure the defect by amendment, and because this claim was added for the first time in the FAC, leave to amend is granted.

V. Disposition

The demurrer to the first cause of action (Penal Code section 631) is OVERRULED.

The demurrer to the second cause of action (Penal Code section 632) is OVERRULED.

The demurrer to the third cause of action (Penal Code section 635) is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff shall file and serve any amended complaint within 20 days of service of the final order. Google shall respond within the time provided by the Code of Civil Procedure.

Defendant shall prepare the order.

A judge has a duty to decide any proceeding in which they are not disqualified.

I am required to disclose that included in the diverse portfolio of multiple investment interests held in my family trust are stock shares in the parent company of defendant Google, Alphabet Inc. This trust is entirely managed by an independent financial advisor who makes decisions regarding investment purchases, sales and overall holdings. Though the trust is not a blind trust, I rely entirely upon the expertise of the advisor, and I am not involved in making these investment decision.

I have carefully considered the scope and extent of this interest in the context of being assigned this case, and I have relied upon the discussion and advice provided by the Judicial

Ethics Committee of the California Judges Association, particularly Formal Ethics Opinion No. 59. Opinion 59 addresses precisely the issue presented here. I will provide counsel with a copy.

I have concluded I am not disqualified from this case, and I can assure counsel and the parties that I am confident in my ability to be fair and impartial. Although I conclude I am not disqualified, I am required by my ethical responsibilities to make this disclosure.

Calendar Lines 5 – 6

Case Name: *Ramos et al. v. Branch Metrics, Inc.*
Case No.: 25CV481772

This is a putative class action asserting a sole cause of action under the California Invasion of Privacy Act (“CIPA”), Penal Code section 638.51. Before the Court are the following: (1) Defendant Branch Metrics, Inc.’s (“Branch” or “Defendant”) motion to stay proceedings, or alternatively, to stay discovery; and (2) Defendant’s demurrer to the Complaint.

As discussed below, Defendant’s motion to stay this action is GRANTED. The action is stayed pending the decision of the Court of Appeal, Second Appellate District, in *Variety Media, LLC v. Superior Court* (No. B350578) (“*Variety*”). Because the entire action is stayed, the hearing on Defendant’s demurrer is CONTINUED and the demurrer is not decided at this time. The Court sets a status conference as provided in the Order below.

I. Background

Plaintiffs Marcos Ramos and Brady Petrik (“Plaintiffs”) allege that Branch, a marketing-analytics company, deployed a software “Tracker” (an SDK and website code snippet) on third-party websites and applications (i.e., bleacherreport.com, m.imdb.com, and the IMDb mobile application) that collected and transmitted to Branch users’ IP addresses, device identifiers, and related data without a court order or user consent, in violation of the statute’s prohibition on installing or using a pen register or trap-and-trace device. (Complaint, ¶¶ 2, 28–51, 78–91.)

Branch demurred to the Complaint on May 8, 2026, contending principally that section 638.51 does not apply to internet or website technology and, in the alternative, that Plaintiffs fail to allege that Branch “installed or used” a pen register, that the Tracker is not a “pen register,” and that Plaintiffs allege no cognizable privacy interest. (Dem., pp. 4–15.) On June 10, 2026, Branch moved to stay the action pending the appeal in *Variety* or, alternatively, to stay discovery pending resolution of the demurrer. Plaintiffs opposed both motions on July 28, 2026, and Branch replied on August 5, 2026. No class has been certified and no trial date has been set.

II. Request for Judicial Notice

In connection with its reply, Branch requests judicial notice of three court records (RJN, Ex. A–C): (A) the Court of Appeal case summary in *Variety* (No. B350578, Second Appellate District, Division Three), which reflects an oral-argument date of August 25, 2026; (B) the unopposed motion to stay the appeal filed June 12, 2026 in *Drummer v. CoStar Group, Inc.*, Ninth Circuit No. 26-1652; and (C) the Ninth Circuit’s June 22, 2026 order granting that motion and staying that appeal pending *Variety*. These are records of a court of this state and of the federal courts and are properly noticeable. (Evid. Code § 452(d); *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 929; *Hart v. Darwish* (2017) 12 Cal.App.5th 218, 224.)

The Request for Judicial Notice is GRANTED as to the existence and legal effect of these documents, though not as to the truth of any hearsay statements within them.

III. Motion to Stay

A. Legal Standard

“[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141, quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254; see *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”].) Courts have recognized this power to stay an action to await the outcome of another proceeding that may determine some or all of the issues before the court. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 696–697 (*Koch-Ash*).)

B. The Variety Appeal Presents the Question Dispositive of This Action

Plaintiffs’ Complaint rises or falls on a single, threshold question of statutory interpretation: whether Penal Code section 638.51 reaches website tracking technologies such as the Tracker or is instead confined to traditional telephonic surveillance. That is the precise

question raised by Branch’s demurrer (Dem., pp. 4–9) and disputed in Plaintiffs’ opposition (Dem. Opp., pp. 3–11). It is also the precise question now pending before the Court of Appeal in *Variety*, which arises from a trial court order overruling a demurrer that advanced the same “text, structure, and legislative history” argument Branch presses here. (Mot., pp. 1, 2–3; Stay Reply, pp. 1–2 and fn. 2.)

A published decision of the Court of Appeal on that question would be binding on this Court. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455; Mot., p. 5.) There is at present no published California appellate authority resolving the issue. A decision in *Variety* therefore is likely to be dispositive of, or at a minimum to substantially narrow and clarify, the sole claim in this action. Awaiting that guidance, rather than deciding the same unsettled question now, only to risk revisiting it after the appellate court rules, serves the orderly administration of justice. (Mot., p. 5.)

C. The Requested Stay Is Tied to a Defined Event and Is Not Indefinite

Plaintiffs’ principal objection is that the stay would be indefinite because, at the time the motion was filed, no decision date (and indeed no oral argument date) could be predicted. (Stay Opp., pp. 2–3.) That objection has been overtaken by events. As reflected in the record now before the Court, oral argument in *Variety* was set for August 25, 2026. (Stay Reply, pp. 1–2; RJN, Ex. A.) The requested stay is thus tied to a defined and imminent event, not an open-ended one, which distinguishes the authorities on which Plaintiffs rely (Stay Opp., pp. 2–3). The relevant inquiry is whether the stay is keyed to a definite event, not whether the exact date of decision can be forecast; some uncertainty as to the precise date of an appellate opinion is inherent in any stay pending appeal. (Stay Reply, p. 3.)

Plaintiffs’ further concern that the losing party may seek review in the Supreme Court, prolonging the stay (Stay Opp., p. 3), is speculative on this record. Branch’s request is directed to the forthcoming Court of Appeal decision, and the Court retains authority to lift or modify the stay should circumstances change. The Court likewise acknowledges Plaintiffs’ point that publication of the *Variety* opinion is not guaranteed. (Stay Opp., pp. 4–5.) Even so, the appellate court’s analysis will provide meaningful guidance, and the status-conference

mechanism set out below permits the Court to revisit the stay promptly if *Variety* is resolved without a citable opinion, is de-published, settles, or is otherwise delayed.

D. The Balance of Hardships and Judicial Economy Favors a Temporary Stay

Absent a stay, the parties and the Court would expend substantial resources litigating a putative class action (including broad merits and class discovery, and potentially class certification) on a claim that a forthcoming appellate decision may eliminate or reshape. (Mot., pp. 6, 8; Stay Reply, p. 4.) The Court agrees with Plaintiffs that the ordinary burden of defending a lawsuit, standing alone, is not a sufficient hardship. (Stay Opp., pp. 3–4.) Nevertheless, the hardship here is not merely the cost of litigation generally; it is the prospect of conducting potentially unnecessary and non-repeatable proceedings on the very question the Court of Appeal is poised to decide. That consideration properly informs the Court’s exercise of its case-management discretion. (Stay Reply, p. 4; *Koch-Ash, supra*, 180 Cal.App.3d at pp. 696–698.)

The countervailing prejudice to Plaintiffs is limited. This action is at an early stage: no class is certified, discovery has only begun, and no trial date is set. (Mot., p. 6; Stay Reply, pp. 3–4.) Plaintiffs’ concern about faded memories and lost evidence (Stay Opp., pp. 2–3) is stated in general terms; Plaintiffs identify no specific witness who will become unavailable and no particular evidence at risk of loss during a brief stay. (Stay Reply, pp. 3–4.) Any residual risk can be addressed through the parties’ preservation obligations and periodic status reporting, which the Court imposes below. The Court further notes that other state and federal trial courts have stayed materially similar CIPA actions pending *Variety*. (Mot., p. 3; Stay Reply, pp. 6–7.) Those orders are not binding and are referenced only as reflecting a prevailing case-management approach; the Court reaches its conclusion on the record and considerations particular to this action.

E. Conclusion

Weighing the competing interests, the Court concludes that a temporary stay pending the decision in *Variety* will conserve the resources of the parties and the Court, avoid the risk of

inconsistent or superseded rulings on an unsettled and potentially dispositive question of law, and promote the orderly administration of justice, without working undue prejudice to Plaintiffs. The motion to stay the action is GRANTED. In light of that ruling, the Court does not reach Branch's alternative request to stay discovery pending the demurrer. (Mot., pp. 8–9; Stay Reply, pp. 8–9.)

V. Demurrer

Because the Court stays the entire action, it does not reach the merits of Branch's demurrer at this time. The demurrer raises the same statutory-interpretation question presented in *Variety* (Dem., pp. 4–9; Dem. Opp., pp. 3–11), and resolving it now would risk requiring reconsideration after the Court of Appeal rules—the very inefficiency the stay is intended to avoid. The hearing on the demurrer is therefore CONTINUED, to be reset following the status conference and the decision in *Variety*. The Court expresses no view on the merits of the demurrer, and all of Branch's arguments and Plaintiffs' responses are preserved for decision after the stay is lifted.

VI. Conclusion

1. Defendant's motion to stay the action is GRANTED. This action is STAYED in its entirety pending issuance of the decision of the Court of Appeal in *Variety Media, LLC v. Superior Court* (No. B350578), or further order of this Court.

2. The hearing on Defendant's demurrer to the complaint is CONTINUED and is not decided at this time. It will be reset, if necessary, following the status conference as set below.

3. During the stay, all parties shall preserve all documents, electronically stored information, and other evidence relevant to this action, and shall comply with all preservation obligations imposed by law.

4. The parties shall file a joint status report within ten (10) court days after the Court of Appeal issues its decision in *Variety*, or by February 11, 2027, whichever occurs first, addressing the effect of *Variety* (including any decision, publication status, settlement, or further review) on this action and proposing next steps.

5. Case Management Conference August 12, 2026 at 2:30 p.m. is VACATED.
6. A status conference is set for March 3, 2027, at 2:30 p.m., in Department 5. Any party may move to lift or modify the stay on noticed motion or, on a showing of good cause, by ex parte application, should *Variety* be resolved without a citable opinion or be materially delayed.

Defendant shall prepare the order in accordance with California Rules of Court, rule 3.1312.

- oo0oo -

Calendar Line 6

Case Name:

Case No.:

- oo0oo -

Calendar Lines 7 – 12

Case Name: *Pure Lithium Corporation v. Panasonic Corporation of North America*
Case No.: 26CV487768

Summary of Rulings

No.	Matter	Ruling
1	PCNA's motion to extend time to file motion to seal (7/21/26)	GRANTED
2	Pure Lithium's motion to seal portions of the complaint and Exs. A–B (3/9/26)	GRANTED in part; DENIED as to the agreements
3	Pure Lithium's motion to seal portions of its PI papers (6/26/26)	GRANTED
4	PCNA's motion to seal portions of Pure Lithium's PI papers (7/21/26)	GRANTED in part; DENIED in part; balance DENIED without prejudice
5	PCNA's motion to seal portions of its opposition (7/30/26)	GRANTED in part; DENIED in part; balance DENIED without prejudice
6	Pure Lithium's motion to seal portions of its reply and of PCNA's opposition (8/6/26)	GRANTED
7	PCNA's ex parte application to strike and to file sur-reply (8/10/26)	GRANTED in part: sur-reply and supplemental sur-reply permitted; motion to strike DENIED
8	Pure Lithium's motion for preliminary injunction (6/26/26)	CONTINUED; interim order to be entered

I. Motions to Seal

A. Legal Standard

Court records are presumptively open. (Cal. Rules of Court, rule 2.550(c); *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1208–1210.) Sealing requires express findings of an overriding interest that overcomes the right of access, that the interest supports sealing, a substantial probability of prejudice absent sealing, narrow tailoring, and the absence of

less restrictive means. (Rule 2.550(d).) The order must state the supporting facts and seal only the portions containing the material to be sealed. (Rule 2.550(e)(1).) The showing by the moving party must be particularized; conclusory assertions of confidentiality do not suffice. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 894–898; *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487–488, 496–500 (*Overstock*).) Confidential commercial and technical information may constitute an overriding interest. (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298–300.)

Here, three limits control much of what is disputed. A confidentiality clause or protective-order designation does not in and of itself justify sealing, and records may not be sealed by agreement. (Rule 8.46(d)(1); *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 600–601; *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283–1284 (*Universal City Studios*).) Embarrassment and the wish to avoid scrutiny of alleged misconduct are not overriding interests. (*McNair v. National Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 36 (*McNair*).) Wholesale sealing of a substantive record is not narrowly tailored as the law requires. (*Overstock, supra*, at pp. 496–500.)

The parties have briefed these motions almost entirely on unpublished federal district court orders applying the federal standard. Those decisions are at most persuasive and the federal test is not fully congruent with rule 2.550(d). The Court applies California authority and directs the parties to do so in any further or renewed submissions.

B. Extension of Time (Motion 1)

Pure Lithium lodged its papers June 26, 2026, making PCNA’s deadline July 6. (Rule 2.551(b)(3)(A).) Counsel calendared under Code of Civil Procedure section 1005(b), discovered the error July 16, and filed July 21. Pure Lithium does not oppose. The records have not been transferred to the public file and no prejudice appears.

Accordingly, PCNA’s motion to extend time to file a motion to seal is GRANTED; the July 21 motion is deemed timely.

C. Material the Court Will Seal

As to material disclosing the design, composition, structure, or manufacture of either party's battery technology; specific testing protocols, parameters, and sequences; testing results, images, and underlying data; and internal technical analyses of the foregoing, the Court finds: an overriding interest exists in the confidentiality of the parties' non-public technical and commercial information; that interest supports sealing; a substantial probability of prejudice exists because competitors in the lithium-metal battery field could exploit the information to the disclosing party's detriment; sealing confined to that material is narrowly tailored; and redaction of that material is the least restrictive means available.

On that basis the Court GRANTS: Motion 3 in full; Motion 6 in full; the conceded portions of Motion 4 (Ericson Ex. 1–3, 5–7, 12, 14–17, 20–22, 27–30, 32; Bodoïn Ex. G, I, J, N, O); and the unopposed portions of Motion 5 (Dalal Ex. 2, 7, 8, 10, 12; White Ex. H–O, Q, R; Sim Ex. C, G, W–Z and the identified pages of Ex. P).

D. Material the Court Will Not Seal

1. Allegations, characterizations of conduct, and legal argument

A substantial portion of what PCNA seeks to seal consists of Pure Lithium's allegations that PCNA exceeded the scope of the parties' agreements, PCNA's responses to those allegations, and the parties' legal arguments, including the passages summarizing the alleged wrongdoing, the descriptions of what the contracts are said to permit and prohibit, the statement of the conduct sought to be enjoined, and the table of contents. That a party may find such material damaging or embarrassing is not an overriding interest. (*McNair, supra*, at p. 36.) Sealing the parties' contentions would also prevent the Court from issuing an intelligible public ruling, and the Court declines to grant sealing of such contentions. The same conclusion applies to the corresponding passages of PCNA's own opposition brief. Accordingly, the motions to seal are DENIED as to allegations, characterizations of conduct, and legal arguments.

2. The parties' agreements

PCNA seeks to seal the Mutual Non-Disclosure Agreement and Material Transfer Agreement and the passages describing their terms; Pure Lithium's March 9, 2026 motion seeks to seal the same agreements as exhibits to the complaint. Neither showing satisfies rule 2.550(d). These are form commercial instruments. Neither party identifies a provision whose disclosure would prejudice it, as distinct from the fact that the agreements contain a confidentiality clause — which does not itself justify sealing. (*Universal City Studios, supra*, at pp. 1283–1284; rule 8.46(d)(1).) The provisions at the center of this dispute have been quoted at length in the parties' filings and are necessarily the subject of the Court's rulings. PCNA fairly observes that Pure Lithium moved in March to seal these same agreements and now argues they must be public; the Court resolves the inconsistency against sealing as to both parties.

Motion 2 is DENIED to that extent and GRANTED as to technical material within Part I.C.

3. Pre-litigation correspondence between counsel

Correspondence between counsel concerning the subject matter of this dispute is not technical material, and no particularized prejudice from its disclosure has been shown. The motions are DENIED as to such material, subject to redaction of any embedded technical detail falling within Part I.C. Pure Lithium's opposition to Motion 5 also lists two exhibits that PCNA does not move to seal; absent a motion those will be transferred to the public file under rule 2.551(b)(3)(B). Counsel should confirm this at the hearing.

4. Generic descriptions of technique and industry practice

Both parties seek to seal expert testimony describing, in general terms, what certain established analytical techniques are, what they can reveal, and what is customary in the battery industry. Pure Lithium makes this objection to portions of PCNA's expert declaration; it applies equally to portions of Pure Lithium's own. Descriptions of analytical techniques and industry custom that do not disclose a party's own protocols, parameters, or results are not the confidential information of either party. The motions are DENIED as to such material.

E. Material Requiring Supplemental Briefing

Of the material PCNA seeks to seal, there is a narrower category that the Court would seal if it were appropriately identified and isolated, including: passages disclosing the specific sequence in which it elected to conduct particular analyses, the parameters used, the specific results obtained, its internal assessments of those results, and the identities of the particular third-party laboratories it retained. PCNA's supporting declaration supplies at least some evidentiary basis that this information is maintained in confidence and would be useful to competitors. The Court is prepared to make the appropriate rule 2.550(d) findings for material in this category.

Nevertheless, the obstacle at this stage is that PCNA has not separated this material from the far larger volume addressed in Part I.D. Its two motions identify several hundred line ranges across ten documents, supported by declarations describing the material in broad categorical terms. Rule 2.550(e)(1) requires the Court to state facts, and a categorical declaration spanning that many disparate and inclusive line ranges does not permit it. The Court cannot review the materials, and perform and address this separation, on the present submissions. The parties should also address, in the submission ordered below, the extent to which material in this category has already entered the public record through their own filings, as material already in the public domain cannot be sealed.

F. Conclusion

1. Motions 4 and 5 are DENIED as to Part I.D, and otherwise DENIED WITHOUT PREJUDICE as to Part I.E.
2. On or before **August 27, 2026**, the parties shall file a joint submission consisting of (a) a single set of proposed redactions for each affected document applying Parts I.C through I.E; (b) a chart identifying for each redaction the document, line range, category asserted, asserting party, and whether the other party agrees; and (c) for each disputed redaction, a declaration on personal knowledge stating the specific harm

expected from disclosure of that particular material. Argument by category will not suffice for disputed items.

3. All conditionally lodged material shall remain conditionally under seal pending ruling on the joint submission. The clerk shall not transfer any such material to the public file until further order.
4. A further submission of comparable breadth will result in denial and transfer to the public file. The parties should confine their disputes to material they are prepared to defend individually.

II. PCNA's Ex Parte Application

PCNA seeks the following: (1) leave to file a sur-reply, lodged with its application; (2) an order striking two reply declarations and one argument raised in the reply; and (3) alternatively leave to file a supplemental sur-reply with a supplemental expert declaration. Pure Lithium opposes in all respects.

A. Leave to File the Sur-Reply — GRANTED

New evidence is ordinarily not permitted with reply papers; where permitted, the opposing party should be given an opportunity to respond. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538 (*Jay*); *Hernandez v. First Student, Inc.* (2019) 37 Cal.App.5th 270, 277.) Pure Lithium's reply relies on twenty-one documents from a production PCNA made on July 28, 2026, most of them in Japanese and accompanied by certified translations dated August 4, 2026. PCNA has not addressed those documents, and the material bears on issues central to the motion.

Pure Lithium's waiver argument (that PCNA could have addressed the documents in its July 30 opposition) is not persuasive. PCNA produced them on July 28 and its opposition was due two days later, and it could not have reasonably known which documents Pure Lithium would select or what arguments it would build on them. The authorities cited concern a party's failure to raise an available point in its own brief; they do not require a party to preemptively

rebut arguments not yet made. Accordingly, leave to file the lodged sur-reply is GRANTED, and the sur-reply is deemed filed.

The Court does not resolve the parties' dispute over the timing of PCNA's July 28, 2026 production and makes no finding of misconduct by either party. Disputes concerning the timing and completeness of the parties' productions remain available to be raised by noticed motion, subject to the informal discovery conference requirements.

B. Motion to Strike — DENIED

The argument PCNA seeks to strike is not new. Pure Lithium advanced the substance of it in its opening brief in three separate passages, including in its discussion of the return obligation. The reply refines the argument in one respect, but that is development of a theory presented in the opening papers rather than a new one, and PCNA may address the refinement in its supplemental sur-reply.

The reply declarations are likewise not stricken. A reply declaration is properly considered where it responds to matters raised in the opposition; the concern identified in *Jay* is with reply evidence that addresses substantive issues in the first instance rather than filling gaps created by the opposition. (*Jay, supra*, at p. 1538.) Striking reply declarations that respond to the opposition may constitute an abuse of discretion. (*RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co., Inc.* (2020) 56 Cal.App.5th 413, 431.) Pure Lithium has submitted a paragraph-by-paragraph table comparing each substantive paragraph of the two reply declarations to the portion of PCNA's expert declaration to which it responds. The Court finds Pure Lithium's table to be substantially accurate. Both declarations respond in the main to opinions first offered in opposition, and the fact that one declarant had not submitted an earlier declaration does not make his response improper. Two paragraphs of the expert reply declaration present a closer question, PCNA fairly observing that they add specificity to Pure Lithium's showing on interim harm. Where reply evidence is at the margin, the remedy contemplated by *Jay* is to permit a response rather than to exclude, and the Court takes that course.

C. Supplemental Sur-Reply — GRANTED

PCNA may file a supplemental sur-reply not exceeding ten pages, together with a supplemental declaration of its expert, limited to responding to the two reply declarations. It shall not revisit matters addressed in the opposition or in the sur-reply. Pure Lithium may file a response not exceeding five pages, with no new evidence except in direct rebuttal to the supplemental expert declaration. No further expert declarations will be considered.

III. Motion for Preliminary Injunction — CONTINUED

The motion is continued. The Court is unwilling at this time to decide a contested application for injunctive relief on a record to which one party has not had sufficient opportunity to respond, and striking the reply material would deprive the Court of evidence both parties regard as relevant. The Court acknowledges Pure Lithium's position that the matter is urgent; that concern is addressed by the interim measures described in Part IV, which the Court raises for that reason. The continuance will be brief, as PCNA has already prepared its principal sur-reply.

IV. Interim Measures

A continuance should not prejudice Pure Lithium. PCNA has represented in correspondence and by declaration that neither it nor Panasonic Energy Co., Ltd. is using the information derived from its testing, that it does not want that information, and that it offered to destroy it. PCNA has not consented to an interim order, and the Court will hear argument before entering one. Subject to that argument, the Court is inclined to order, pending the continued hearing and until further order of the Court:

1. That PCNA, and its officers, directors, employees, agents and attorneys, and those in active concert or participation with them who receive actual notice, be restrained from using, disclosing or transmitting, for any research, development, engineering, design, manufacturing, commercial, competitive, benchmarking or business purpose, any information, data, images, measurements or analyses originating in or derived from (a) X-ray computed tomography, focused ion beam, scanning electron microscopy or energy-dispersive X-ray spectroscopy analysis of Pure Lithium's

battery cell prototypes, including any cryogenic variant; (b) the disassembly, sectioning or chemical analysis of any such prototype or portion; or (c) any testing or analysis of any such prototype or portion performed by any third party. The restraint would not extend to cycle testing or information derived from it; to use reasonably necessary for this litigation, subject to the protective order; or to information lawfully in the public domain other than through any act of PCNA, including information disclosed in Pure Lithium's published patents and patent applications.

2. That PCNA not destroy, delete, discard, overwrite, alter or dispose of any such information, any associated metadata, or the physical remnants of any Pure Lithium battery cell prototype or portion of a prototype in its possession, custody or control, notwithstanding any document retention, data purge or hazardous waste disposal practice that would otherwise apply.
3. That PCNA, within five court days, give written notice to each third party to which it transferred any Pure Lithium battery cell prototype or portion thereof, or which performed any testing or analysis of any such prototype or portion at PCNA's request, directing each to preserve and not destroy or alter any information derived from that testing or analysis and to perform no further testing or analysis; and that PCNA provide a copy of the order to Panasonic Energy Co., Ltd. Nothing in such an order would constitute a determination that any non-party is subject to the jurisdiction of this Court or is bound by the order, except to the extent it acts in active concert or participation with PCNA with actual notice of the order. PCNA shall file and serve a declaration confirming compliance with this paragraph, which may identify the recipients by reference to material lodged conditionally under seal.
4. That Pure Lithium file an undertaking under Code of Civil Procedure section 529 in an amount to be set at the hearing, the Court's preliminary view being that a nominal amount is appropriate for a restraint of this limited and prohibitory character, without prejudice to the amount required in connection with any preliminary injunction.

Any such order would preserve the status quo only and would reflect no finding on likelihood of success, breach, irreparable harm, or the admissibility or weight of any evidence. The Court would accept a stipulation on these or comparable terms in lieu of a contested order.

V. Schedule

The Court proposes the following and will set final dates at the hearing. Counsel should be prepared to state their availability; the Court notes that Pure Lithium's counsel has stated that she is unavailable on the August 19 date PCNA proposed.

Event	Proposed date
Sur-reply deemed filed; interim order entered; undertaking filed	Within 5 court days of the hearing
PCNA supplemental sur-reply (10 pp.) and supplemental expert declaration	August 20, 2026
Pure Lithium response (5 pp.)	August 27, 2026
Joint submission on sealing redactions (Part I.F)	August 27, 2026
Continued hearing on the preliminary injunction	Week of September 2, 2026, or the next available date on which counsel are available

VI. Reserved Matters

The Court defers ruling on the following: the merits of the preliminary injunction, including likelihood of success, interim harm, the balance of equities, the scope of any injunction and the amount of any undertaking; Pure Lithium's written evidentiary objections filed August 6, 2026, as to which PCNA may file its own objections with its supplemental sur-reply; PCNA's alternative request that the Court direct a meet and confer regarding disposition of the materials at issue; whether any injunction may reach Panasonic Energy Co., Ltd.; and all disputes concerning the timing, scope and completeness of the parties' document productions.

Calendar Line 8

Case Name:

Case No.:

- oo0oo -

Calendar Line 9

Case Name:

Case No.:

- oo0oo -

Calendar Line 10

Case Name:

Case No.:

- oo0oo -

Calendar Line 11

Case Name:

Case No.:

- oo0oo -

Calendar Line 12

Case Name:

Case No.:

- oo0oo -

Calendar Line 13

Case Name:

Case No.:

- oo0oo -